DIVISION BENCH ITEM NO.102

NATIONAL COMPANY LAW TRIBUNAL
ALLAHABAD BENCH
PRAYAGRAJ

CP (CAA) No.4/ALD/2023 IN CA (CAA) No. 20/ALD/2022
(Second Motion)

CORAM:

1. **SHRI PRAVEEN GUPTA,**
   HON'BLE MEMBER (JUDICIAL)
2. **SHRI ASHISH VERMA,**
   HON'BLE MEMBER (TECHNICAL)

Date of Order: 21st December, 2023

Attendance-Cum-Order Sheet of the Hearing.

NAME OF THE COMPANY	**JINDAL QUALITY TUBULAR LTD. WITH JINDAL SAW LTD.**
UNDER SECTION	**SEC. 230/232 OF COMPANIES ACT 2013**

COUNSEL APPEARED THROUGH PHYSICAL/ VIRTUAL HEARING:

Sh. Shashi Kant Gupta with — *: For the Petitioner*
Sh. Ankit Kumar Singh, PCS.

Sh. Rishabh Govila Proxy for — *: For the RoC*
Sh. Krishna Dev Vyas, Adv.

Sh. Ajeet Kumar Singh, AOL — *: For O.L. Alld/RD(NR)*
Sh. Niraj Kr. Singh Proxy for — : *For the IT Dept.*
Sh. Gaurav Mahajan, Sr. SC.

ORDER

1. This is a second motion petition in which the RD, ROC as well as the Official Liquidator reports have already been filed and the copies have already been made available to the Ld. Counsel representing the petitioner companies.

2. With regard to the report to be filed by the Income Tax Department, it is vehemently argued by the Ld. Counsel representing the petitioners that the concerned Income Tax Department has still not filed the report despite the service having already been affected way back in May, 2023.

-Sd- ***-Sd-***

3. Ld. Counsel representing the Income Tax Department has also produced an email ID dated 22nd November, 2023, addressed to the Principal Commissioner of Income Tax- I Agra, intimating about the next date of hearing and to comply with the order of the Tribunal for filing the reports if any, with respect to the petitioner companies.

4. In response to this email even subsequent communication by way of the email dated 29th November, 2023, has been made by the Agra office of the Income Tax Department to the Principal Chief Commissioner Income Tax, Delhi, wherein also the proceedings pending before the Tribunal has been communicated, despite this there is no response received whatsoever from the concerned department.

5. It is stated by the Ld. Counsel representing the petitioner that the companies are assessed at New Delhi. Keeping in view the fact that even the communication has already been made to the Principal Chief Commissioner, Income Tax Department, New Delhi and no response has so far been received, we deem it appropriate to grant last opportunity to the concerned Income Tax Authorities to file their report if any, within a period of two weeks with an advance copy to be supplied to the Ld. Counsel representing the petitioners companies.

6. Ld. Counsel representing the Income Tax Department to communicate this order to all concerned offices of the Department including that of Delhi office, where the companies are assessed.

7. Let the matter to come up on 11th January, 2024.

-Sd- ***-Sd-***

(Ashish Verma) **(Praveen Gupta)**
Member (Technical) **Member (Judicial)**
21st December, 2023

Bipul Kumar Tiwari
(Stenographer)